

SC Background Checks — Who Does What

Home health aide hiring compliance · corrected 08-11-2026 · for Larry & owner review · not legal advice

Key correction — it's RESIDENCY-BASED, not universal

- Aide who **verifies 12 months of SC residency** (SC license/ID, rent/mortgage/utility, pay stubs, or SC bank records) → **SLED state check only** is lawful. **No fingerprints needed.**
- Aide who **can't verify SC residency** → state check, then a **federal fingerprint (FBI)** check.
- Verified 12-mo residency in another state → may run only that state's check.
- Universal prints is common **agency policy** (and payers/Medicaid waivers can impose more) — but it's not what § 44-7-2910 itself requires.

TRACK 1 — Per-AIDE (direct caregiver, § 44-7-2910) AIDE

- **Required before employing** any direct caregiver (home health agencies are listed "direct care entities").
- **Type depends on residency** (see correction above). Fingerprints/IdentoGO only when the **federal check** is needed.
- **When prints are needed, your steps:** agency has a valid relationship → complete the "Verification of Application and Authorization for Background Check" form → email HQCBC@dph.sc.gov → provide the **Privacy Rights + FBI Privacy Act Statements** (mandatory) → DPH returns a **service code** → aide goes to **IdentoGO** (live-scan) → SLED + FBI.
- **Cost:** ~\$51.75 at IdentoGO (subject to change). Either party may pay (SC AG) — absorbing it is recruiting-friendly.
- **File:** the **result / DPH eligibility determination**, NOT a print card. For home health (PL 105-277), if no SLED-vetted rep, DPH's eligibility determination is your file doc.

TRACK 2 — AGENCY-level (owners, NOT aides) AGENCY

- **42 CFR § 455.434 / .450:** fingerprint-based check on the **provider or anyone with 5%+ ownership** for **high-risk providers** — home health agencies are high-risk.
- **Revalidate every 3 years** (vs 5 for others). FCBC became a Healthy Connections enrollment requirement **Aug 15, 2022**.

- **Different people, different law** — this screens your **owners**, not your aides. Same IdentoGO fee scale.
- At revalidation, submit **fingerprint appointment confirmation** to avoid a 30-day termination gap.

Timeline

2002	Direct-caregiver background check law (§ 44-7-2910) enacted (Act 242, eff. July 1, 2002).
2004	Fingerprint requirement added for the federal/national check (Act 264, eff. July 6, 2004).
2022	Medicaid FCBC (agency/owner) requirement for high-risk providers, effective Aug 15, 2022.

"Do prints have to be physically in the employee folder?"

- **No.** IdentoGO captures and transmits them; you never possess a print card.
- The folder must contain the **check result / DPH eligibility determination**, retained as received (plus proof of when the check was initiated).

Legacy aides (hired years ago, no prints) — sort the files

- **(a)** State check done + **residency documented** → likely **compliant**; just document residency if missing.
- **(b)** State check done, residency **never verified** → the federal check should have run.
- **(c)** No check at all → clear violation.
- **Fix (b)/(c):** run the missing checks NOW + write a **dated corrective-action memo** (never quietly backfill). A break ≥ 1 year = re-run the check before resuming.
- **Ramifications:** missing checks = standard **Reg 61-77 survey deficiency** (citations + plan of correction); Medicaid **overpayment** exposure if aides serve Medicaid clients. Take the sort to a healthcare attorney before the next survey/revalidation.